

		correct plaintiff's allegations as to the meaning of the agreement"].) The 2nd cause of action for common count - work, labor, and services rendered, states sufficient facts. (<i>Farmers Ins. Exchange v. Zerin</i> (1997) 53 Cal.App.4th 445, 460 ["The only essential allegations of a common count are (1) the statement of indebtedness in a certain sum, (2) the consideration, i.e., goods sold, work done, etc., and (3) nonpayment;" citation omitted]; CACI 371 [quantum meruit elements]; SAC, ¶¶ 12, 13, 20, 25 [oral contract for plaintiff to perform services, i.e. the Handrail Refinishing Project], 16, 21, 26 [plaintiff's performance], 17, 22 [indebtedness via nonpayment], 23, 28 [\$48,500 reasonable value of services].) Moving defendants shall file an Answer to the SAC within 10 days. Plaintiff shall give notice.
11	Vicuna vs. Frsteam by Custom Commercial 2025-01523569	Demurrer to Complaint Defendants Custom Commercial Dry Cleaners, LLC, dba FRSTeam by Custom Commercial, and FRSTeam, LLC's demurrer to the 3rd cause of action for conversion in plaintiff Robert Vicuna's Complaint is OVERRULED. The third cause of action states sufficient facts. (Code Civ. Proc., § 430.10, subd. (e) [demurrer for failure to state]; <i>Lee v. Hanley</i> (2015) 61 Cal.4th 1225, 1240 [conversion elements]; Complaint, ¶¶ 2, 27 [plaintiff's ownership / possession of personal property], 6-9, 38 [deprivation of property for a significant period, failure to return property, and/or destroyed property, including "multiple missing items" (¶ 7), and "many of the items were not delivered" or "were lost" (¶ 8)], 39 [lack of consent], 13, 40-42 [proximately caused damages]; see also <i>Quelimane Co., Inc. v. Stewart Title Guar. Co.</i> (1998) 19 Cal.4th 26, 38-39 [a complaint is good against a general demurrer so long as it states a cause of action under any theory]; <i>Rader Co. v. Stone</i> (1986) 178 Cal.App.3d 10, 29 ["a plaintiff is permitted to plead inconsistent or ... alternative counts"].) Moving parties' notice of demurrer also cites Code Civ. Proc., § 430.10, subd. (f) [uncertainty], but the moving papers do not address this ground. In any event, demurrers for uncertainty should be sustained "only if the pleading is so incomprehensible that a defendant cannot reasonably respond" (<i>A.J. Fistes Corp. v.</i>

	<i>GDL Best Contractors, Inc.</i> (2019) 38 Cal.App.5th 677, 695), which is not the case here. (See also <i>Lickiss v. Financial Industry Regulatory Authority</i> (2012) 208 Cal.App.4th 1125, 1135 [“We strictly construe such demurrers because ambiguities can reasonably be clarified under modern rules of discovery”].) Moving defendants shall file an Answer to the Complaint within 15 days. Case Management Conference continued to January 15, 2027 at 8:30 a.m. in Department C44. Plaintiff shall give notice.
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